

CARGOYAAN EXPRESS PVT LTD

TERMS & CONDITIONS FOR TRANSPORTATION OF GOODS

The Memorandum of Understanding (MOU) - in case of contractual customers or Waybill - in case of non-contractual customers are to be regarded as "Contract" between Cargoyaan Express Private Limited, referred to as "carrier" having its Corporate office at khasra number 29/18, Sihi Village, sector 84, Gurugram, 122004, and Owners or Despatchers of the Goods, referred to as "customer", and as specified on the contract, for the transportation of the said goods as booked from Booking location to the final Destination. This arrangement is governed by this carriage policy, terms of which are enumerated below.

1. SCOPE OF SERVICE

1.1 The scope of service would cover forward, outbound, downstream distribution of goods from the pick-up location(s) designated by the customer to the locations on the scheduled network of carrier in general and to any other destination within India through its service. Transportation mode used are surface by truck and air via passenger aircrafts, depending on the service chosen by the customer.

1.2 Any consignment not delivered at the destination, if requested to be rebooked, will be booked on the same rates (outbound rates as per the quote).

1.3 All goods are booked and transported on "said to Contain Basis" (We assume that Nature of Goods is same as declared by customer in his Documents).

2. COMMERCIALS

The rates and other basic commercials are as per the rates given in the contract or agreed at the time of the contract.

3. STATUTORY LEVIES

The consignments booked and carried by carrier stand cleared by the Custom/ Excise/ GST authorities and any confiscation on account of lapses or non-compliance of the statutory requirements by the customers, would be the responsibility/ liability of the customers themselves.

4. TRANSIT INSURANCE

Carrier will ensure smooth, damage-free and 'in full' transit & delivery of all consignments. However, in certain exceptional cases beyond the control, if there is any damage/ non-delivery of all packages/ delivery of short packages, carrier will ensure settlement of all issues as per the nature of the transit insurance of the customer or agreed at the time of contract.

4.1 Cargoyaan will settle all issues to the customer satisfaction. In case of any loss/ damage of consignments when in custody of carrier, claims will be settled as per the Invoice Value declared at the time of booking of consignment, subject to remarks on POD.

4.2 Payment of the Cargoyaan Freight Invoice cannot be linked with the settlement of the claim/ issue and must be done in full and as per the agreed timelines.

4.3 All claims will be paid through RTGS/ NEFT in the customer's account.

5. TRANSIT SCHEDULE

5.1 Transit time will be as per the Cargoyaan Transit Schedule, which will be subject to change on account of prevailing conditions in the geography impacted.

5.2 Carrier will make every possible effort to adhere to the transit time mentioned in its Transit Schedule but will not accept responsibility/ liability for any delay due to unforeseen circumstances beyond our control, consignee induced delays and for the consequential losses suffered due to delay in delivery.

6. PROOF OF DELIVERY (POD)

6.1 PODs do not form a pre-requisite for submission & pay-out of Cargoyaan Freight Invoice 6.2 In case of any requirement of specific PODs by the customer, same will be provided in digital format.

7. PAYMENT TERMS

7.1 Invoice will be raised as per the billing process in the contract or agreed at the time of booking.

7.2 Invoice will be sent in electronic format on your registered email ID registered with Cargoyaan .

7.3 Customer will make payment in full as per the invoice and on time as per the contractual terms, through e-payment modes.

7.4 Failure to make on-time payments will result in the temporary suspension of your account, which will resume once the outstanding payment is settled.

7.5 While Cargoyaan undertakes to address all issues to the entire satisfaction of customers, there will be no deductions or holding of payment under any circumstances, whatsoever.

8. VALIDITY FOR CLAIMING DIFFERENCE IN WEIGHT MEASUREMENT

The consignments are weighed and measured at the time of booking and their weight and volumes are recorded on the waybills.

8.1 The waybills are checked, and counter signed by the consignor's/ their representatives after verifying the particulars mentioned on the waybills.

8.2 If any difference is found in weight or volume, the same should be pinpointed at the time of booking itself.

8.3 Any claims raised by the customer, with respect to difference in weight or/ and volume later shall not be valid. No such claims shall be valid, if raised post-delivery.

8.4 Similarly, Cargoyaan shall raise any such matter before delivery of the consignment only.

9. LIABILITY FOR THE NATURE OF CONSIGNMENTS CARRIED

Consignments permitted by law only, are accepted for booking and carriage by Cargoyaan and any item hazardous in nature, harmful chemical, inflammables, currency notes or any articles/commodities not permissible for carriage as per the Carrier's Act are not accepted. The responsibility for any wrong declaration and the consequences arising out of the same would be the responsibility of the customer.

10. JURISDICTION

The Courts in Haryana only will have the jurisdiction in case of any disputes related to this contract.